

**THIRD AMENDMENT, RATIFICATION, AND NOTICE OF ADDITION OF LAND TO
DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS**

Yowell Ranch

THIS THIRD AMENDMENT AND NOTICE OF ADDITION OF LAND TO DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS ("Amendment") is made as of the Effective Date shown below by WBW Development, Ltd., a Texas limited partnership.

RECITALS

A. On or about January 15, 2010, Declarant made that certain Declaration of Covenants, Conditions and Restrictions of record at Instrument #2010-00002251 in the Official Public Records of Bell County, Texas ("Declaration.")

B. On or about February 26, 2011, Declarant made that certain First Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2011-000002528 in the Official Public Records of Bell County, Texas.

C. On or about May, 31 2011, Declarant made that certain Second Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2011-00021294 in the Official Public Records of Bell County, Texas.

D. Declarant continues to own Lots in the Subdivision.

E. Declarant now desires to (1) amend the Declaration as provided herein to add Phase Four of the Subdivision in order to make same subject to the Declaration in its entirety

NOW, THEREFORE, pursuant to the authority reserved to Declarant under Article 10.1 and Article 12.2 of the Declaration, Declarant hereby makes the following supplemental amendments to the Declaration:

1. Capitalized terms used herein shall have the meaning ascribed to them in the Declaration unless the context clearly indicates otherwise.

2. Exhibits "A" through "E" to the Declaration are amended to read as reflected in Exhibits "A" through "E" attached to this instrument.

3. In the event of an inconsistency between this Amendment and the terms of the Declaration, this Amendment shall govern. Except as expressly provided herein, the Declaration has not been amended or modified, and all terms, covenants, conditions and restrictions of the Declaration shall continue in full force and effect with respect to the entire Property. Hereafter, all references to the Declaration shall be deemed to be references to the Declaration as amended and modified by this instrument. The Declaration as herein amended is hereby ratified and approved.

4. This Amendment shall be EFFECTIVE from and after the date of the notary acknowledgement shown below.

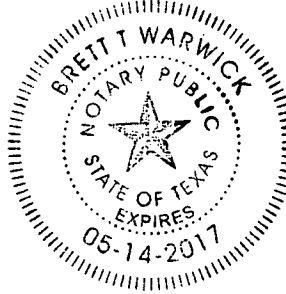
WBW Development, Ltd.
By: WBW Development Management, LLC,
Its General Partner

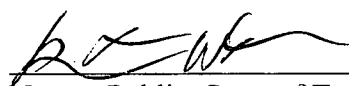
By: 
Bruce Whitis, Manager / President

STATE OF TEXAS

COUNTY OF BELL

This instrument was acknowledged before me on the 9th day of October, 2015, by Bruce Whitis, Manager and President of WBW Development Management, LLC, a Texas limited liability company, in its capacity as General Partner of WBW Development, Ltd., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.




Notary Public, State of Texas

D.R. Horton Consent

The undersigned, being the owner of certain Lots in the Subdivision affected by the foregoing Amendment, hereby for itself, its successors and assigns, consents to the terms and provisions of such instrument, and ratifies all prior amendments to the Original Declaration as of their respective effective dates.

Continental Homes of Texas, L.P., a Texas
limited partnership, doing business as D.R.
Horton Homes
By: CHTEX of Texas, Inc., a Texas
corporation, its General Partner

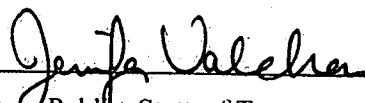
By: 
Name: DALE JANDA
Title: LAND ACQUISITIONS MANAGER

STATE OF TEXAS

COUNTY OF BELL

This instrument was acknowledged before me on the 14TH day of October, 2015, by DALE JANDA, LAND ACQUISITION MANAGER of CHTEX of Texas, Inc., a Texas corporation, in its capacity as General Partner of Continental Homes of Texas, L.P., a Texas limited partnership, doing business as D.R. Horton Homes, on behalf of said limited partnership, and as the act and deed thereof.

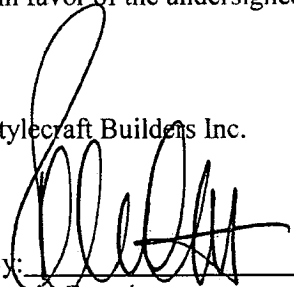



Notary Public, State of Texas

Stylecraft Consent

The undersigned acknowledges that the foregoing instrument does not modify the Declaration in a manner that materially and adversely impacts the Lots or Property owned by the undersigned or subject to a valid contract of purchase in favor of the undersigned, and consents to the terms and provisions of such instrument.

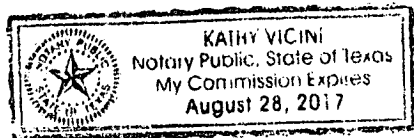
Stylecraft Builders Inc.

By: 
Randy French

STATE OF TEXAS

COUNTY OF TRAVIS

This instrument was acknowledged before me on the 14 day of October, 2015, by Randy French, Stylecraft Builders Inc, on behalf of said company, and as the act and deed thereof.



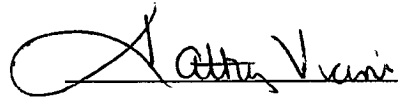

Notary Public, State of Texas

EXHIBIT "A"**The Property**

Tracts 1, 2, 3, 4, 5, 6, and 7; Lots 1 through 26, 5, and 7, Block 1; Lots 1 through 15, Block 2; Lots 1 through 97, Block 3; Lots 1 through 226, Block 4; and Lots 1 through 16, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tracts 1, 2, and 3; Lots 1 through 27, Block 1; Lots 1 through 113, Block 2; Lots 1 through 115, Block 3; Lots 1 through 24, Block 4; and Lots 1 through 26, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Tracts A, B, C, and D; Lots 1 through 166, Block 1; Lots 1 through 15, Block 2; Lots 1 through 30, Block 3; Lots 1 through 24, Block 4; Lots 1 through 39, Block 5; Lots 1 through 28, Block 6; and Lots 1 through 34, Block 7 of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

Tract A, B, C, D, and E; Lots 1 through 39, Block 1; Lots 1 through 65, Block 2; Lots 1 through 50, Block 3; Lots 1 through 28, Block 4; Lots 1 through 24, Block 5; Lots 1 through 59, Block 6 of the FINAL PLAT OF YOWELL RANCH PHASE IV, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Year 2015, Number 105 A/B/C, Plat Records of Bell County, Texas.

EXHIBIT "B"**Common Areas**

Tracts 1, 2, 3, 4, 5, and 6 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tracts 1, 2, and 3 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Tracts C and D of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

Tracts A, B, C, D, and E of the FINAL PLAT OF YOWELL RANCH PHASE IV, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Year 2015, Number 105 A/B/C, Plat Records of Bell County, Texas.

EXHIBIT "C"**SUBDIVISION FENCING EASEMENT**

An easement for subdivision fencing for the benefit of the Declarant and the Association, (i) adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 of Block 1, Lot 1 and Lots 37 through 51 of Block 3, and Lots 1 through 8 of Block 5; and (ii) adjacent to Stagecoach Road, being five feet (5') in width, and located within and along the northerly boundary lines of Lots 22 through 26 of Block 1, and Lot 1 of Block 2 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 and Lots 95 through 113, Block 2; and Lot 1, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, (i) adjacent to Shimla Drive, being five feet (5') in width, and located within and along the westerly lot lines of Lot 15, Block 2; Lots 15 and 30, Block 3; Lots 12 and 24, Block 4; Lots 15 and 16, Block 6; Lots 1, 20 and 21, Block 7; and (ii) adjacent to Shimla Drive, being five feet (5') in width, and located within and along the easterly lot lines of Lots 1, 33, 34, 66, 67, 100, 101, 133, 134, and 166, Block 1 of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, adjacent to Chaparral Road, being 5' in width, and located within and along the southern lot lines of Lot 1 Block 1 and Lots 1 through 12 Block 6 of the FINAL PLAT OF YOWELL RANCH PHASE IV, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Year 2015, Number 105 A/B/C, Plat Records of Bell County, Texas.

EXHIBIT "D"**Entry Signs**

Tracts 2, 3, 4, 5, and 6 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tracts 2 and 3 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Tracts D and E of the FINAL PLAT OF YOWELL RANCH PHASE IV, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Year 2015, Number 105 A/B/C, Plat Records of Bell County, Texas.



70 2015 00039904

**Bell County
Shelley Coston
County Clerk
Belton, Texas 76513**

Instrument Number: 2015-00039904

Recorded On: October 15, 2015

**As
Recordings**

Parties: WBW DEVELOPMENT LTD

To EX PARTE

Billable Pages: 9

Number of Pages: 10

Comment:

(Parties listed above are for Clerks reference only)

**** Examined and Charged as Follows: ****

Recordings	43.00
Total Recording:	43.00

******* DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *******

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2015-00039904
Receipt Number: 250564
Recorded Date/Time: October 15, 2015 03:14:32P
User / Station: K Salamone - Cash Station 3

Record and Return To:

W&B DEVELOPMENT LTD
3000 ILLINOIS AVE STE 100
KILLEEN TX 76543



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property
Records in Bell County, Texas

Shelley Coston
Bell County Clerk